

Jhanni v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 13 December 2018 · WRIT - C No. 41093 of 2018 · **Writ disposed; fresh representation to be decided after s.161 report.**

HEADNOTE

Widow sought mandamus for compensation after her husband died of electrocution and her 2016 application was not decided. Without examining merits, the Division Bench disposed of the writ by permitting a fresh representation: the concerned authority is to send a Section 161 report with the papers to the Executive Engineer, who must decide by a speaking order after hearing, in accordance with law.

FACTUAL SUMMARY

The petitioner's husband, Sampat Ram, died on 16 May 2016 of electrical injuries from a high-voltage wire alleged to have been hanging very low. The incident was recorded in the police general diary and a post-mortem was conducted. The widow applied to the electricity authority on 12 September 2016 for compensation, enclosing the required documents. Neither compensation nor a decision followed. She sought a mandamus for payment and for disposal of that application; counsel later confined the prayer to a time-bound fresh representation.

HOLDING-UNITS

HOLDING-UNIT · EA2003::161

electrical accident inquiry and compensation representation

HOLDING

Without expressing any opinion on merits, a writ seeking compensation for electrocution death is disposed of by directing a fresh representation; the concerned authority shall submit a report as provided under Section 161, together with the representation, to the Executive Engineer, who shall decide the claim by a speaking order after hearing, in accordance with law. ¶ 1

FLAG Order cites 'Section 161 of the Electricity Supply Code, 2005'; Section 161 is of the Electricity Act, 2003 (notice of accidents and inquiries), not the Supply Code.

PRINCIPLE TAGS

relegate-to-statutory-remedy Widow sought mandamus for compensation after her husband died of electrocution and her 2016 application was not decided.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO COMPENSATION FOR THE ELECTROCUTION DEATH OF SAMPAT RAM

Court expressly declined to examine merits. ¶ 1